

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Raymond P. Moore**

Civil Action No. 1:18-cv-00997-RM

DUKE UNIVERSITY and
ALLERGAN SALES, LLC,

Plaintiffs,

v.

SANDOZ INC.,

Defendant.

VERDICT FORM

We, the jury, unanimously agree to the answers to the following questions and return them under the instructions of this Court as our verdict in this case.

I. INVALIDITY

A. Obviousness

Question No. 1: Has Sandoz proven by clear and convincing evidence that claim 30 of the '270 patent is invalid due to obviousness?

Yes _____

No ☒ _____

Regardless of your answer, please proceed to Question No. 2.

B. Lack of Written Description

Question No. 2: Has Sandoz proven by clear and convincing evidence that claim 30 of the '270 patent is invalid due to lack of adequate written description?

Yes _____

No ☒ _____

Regardless of your answer, please proceed to Question No. 3.

C. Lack of Enablement

Question No. 3: Has Sandoz proven by clear and convincing evidence that claim 30 of the '270 patent is invalid for lack of enablement?

Yes _____ No ✓

*Regardless of your answer, please proceed to Section II – Damages. If you answered “Yes” to Questions 1, 2, or 3 above—in other words, if you found that the '270 patent is invalid—you should respond to the questions in the next section **as if** you had found the patent valid.*

II. DAMAGES

Question No. 4: Have Duke and Allergan Sales proven by a preponderance of the evidence that they are entitled to recover damages?

Yes ✓ _____ No _____

If you answered “No” to Question 4, STOP. You should proceed directly to the end of this Verdict Form to sign and date where indicated. If you answered “Yes” to Question 4, continue to Question 5.

Question No. 5: What is the amount of damages proven by a preponderance of the evidence to have been suffered by Duke and Allergan Sales due to infringement of claim 30 of the '270 patent by Sandoz?

\$ 39,000,000

You have now reached the end of the verdict form and should review it to ensure it accurately reflects your unanimous determinations. Please sign and date the verdict form in the spaces below and notify the court security officer that you have reached a verdict. The presiding juror should retain possession of the verdict form and bring it when the jury is brought back into the courtroom.

Signatures of all jurors

